

TENTATIVE RULING FOR CIVSB2608426
Department S24 - Judge Carlos M. Cabrera

This courtroom follows California Rules of Court, rule 3.1308(a)(2) for tentative rulings. See also San Bernardino Superior Court Local 561. **If both sides do not appear, the tentative will simply become the ruling.**

Neuman v. Lifson, et al
Motion: Consolidate
Movant: James Walter Neuman (Neuman/Plaintiff)
Respondent: Allan H. Lifson (Lifson/Defendant)

RELEVANT FACTUAL AND PROCEDURAL BACKGROUND

Case No. CIVSB2608426

On March 17, 2026, Plaintiff filed a verified complaint for quiet title against Defendant. The property in dispute is located at 1078 Ridgeview Lane, in Wrightwood, California. (Wrightwood Property). Plaintiff alleges that he met Defendant on New Year's Day in 1969. In or around 1969, they began a long-term personal and business partnership. The parties owned 18 properties over time, with all of the properties titled jointly, except for the Wrightwood Property.

Case No. CIVSB2608431 (Related Case)

On March 17, 2026, Plaintiff filed a complaint against Defendants Allan H. Lifson; California Educational Consultant Group, Inc. (CECG); University Credit LLC; and Isaac Torres, Jr. with 18 causes of action: (1) breach of fiduciary duty; (2) breach of fiduciary duty (derivative); (3) corporate record inspection demand; (4) breach of contract (life estate agreement); (5) breach of contract (\$365,696.87 loan); (6) breach of contract (jointly owned properties); (7) breach of covenant of good faith and fair dealing (life estate agreement); (8) breach of covenant of good faith and fair dealing (\$365,696.87 loan); (9) breach of covenant of good faith and fair dealing (jointly owned properties); (10) conversation; (11) conversation (derivative); (12) violation of penal code section 496a; (13) violation of penal code section 496a (derivative); (14) trespass to chattels; (15) fraud by concealment; (16) accounting; (17) declaratory relief; and (18) elder abuse.

On April 30, 2026, the Court deemed the two cases related but left CIVSB2608431 in S25. Currently, CIVSB2608431 has a motion for change of venue set for hearing on October 8, 2026. Now before the Court is Plaintiff's motion to consolidate both matters under California Code of

Civil Procedure section 1048, subsection (a),¹ and California Rules of Court, rule 3.350. Defendant Lifson opposes.

ANALYSIS

Code of Civil Procedure section 1048, subdivision (a), provides: “When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.” “Consolidation of cases under Code of Civil Procedure, § 1048, rests within the sound discretion of the trial judge.” (*Walker v. Walker* (1960) 177 Cal.App.2d 89, 91-92; *see also Fisher v. Nash Bldg. Co.* (1952) 113 Cal.App.2d 397, 402 [“Consolidation is not a matter of right; it rests solely within the sound discretion of the trial judge, and his decision to consolidate, or his refusal to do so, will not be reviewed except upon a clear showing of abuse of discretion.”]; *Fellner v. Steinbaum* (1955) 132 Cal.App.2d 509, 511.)

The purpose of consolidation is to enhance trial court efficiencies. Consolidation should be granted to avoid: (1) repetitive trials of common issues; (2) unnecessary costs and delays; and (3) a substantial risk of inconsistent adjudications. Factors to be considered include:

- Timeliness of the motion: i.e., whether granting consolidation would delay the trial of any of the cases involved, or whether discovery in one or more of the cases has proceeded without all parties present;
- Complexity: i.e., whether joining the actions involved would make the trial too confusing or complex for a jury; and
- Prejudice: i.e., whether consolidation would adversely affect the rights of any party.

(Weil & Brown, *Calif. Practice Guide, Civ. Pro. Before Trial* (2026) §§ 12:359, 12:362.)

Case No. CIVSB2608426 only deals with quiet title for the Wrightwood Property. Case No. CIVSB2608431 deals with significant different set of issues and facts concerning corporate governance, fiduciary duties, and financial disputes arising from the management of CEGC and University Credit LLC, with the ownership of the Wrightwood property being one of them. While

¹ All further code references are to the Code of Civil Procedure unless stated otherwise.

there may be some foundational facts on the party's relationship and alleged promises made during their long-term relationship, the cases are significantly different.

Very little if any of the purpose for consolidation would actually be accomplished by granting the request. Consolidation does eliminate repetitive trials on common issues, however that is of very little affect with these case due to the significant difference in issues involved therein. There would certainly be a costly delay in CIVSB2608426 if it would have to wait for Case No. CIVSB2608431 and its 18 causes of action to get ready. Furthermore, keeping the cases separate would lower the costs on CIVSB2608426 which has very limited issues. The complexity of CIVSB2608431 requires it to stand alone from CIVSB2608426. Finally, it will prejudicial if the parties have to wait for one case to get ready while the other more simple case is ready.

RULING

1. Plaintiff's request to consolidate cases is DENIED.
2. Movant to give Notice.